Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

SUBCHAPTER C—AREAS SUBJECT TO SPECIAL LAWS

[Circular No. 2025]

PART 115—REVESTED OREGON AND CALIFORNIA RAILROAD AND RECONVEYED COOS BAY WAGON ROAD GRANT LANDS

On pages 5808 and 5809 of the FEDERAL REGISTER of July 21, 1959, there was published a notice of proposed rule making to issue amendments to the regulations implementing the provisions relating to the development of recreational facilities on the O. and C. lands in accordance with the act of August 28, 1937 (50 Stat. 874) and Revised Statutes 2478 (43 U.S.C. 1201). Interested persons were given 30 days in which to submit written comments, suggestions, or objections with respect to the proposed regulations.

No comments, suggestions or objections have been received.

The proposed regulations are hereby adopted without change. This amendment shall become effective on the date of publication in the FEDERAL REGISTER. The amended regulations are set forth below.

ELMER F. BENNETT,
Acting Secretary of the Interior.

SEPTEMBER 23, 1959.

§ 115.180 Statutory authority.

The act of August 28, 1937 (50 Stat. 874; 43 U.S.C. 1181a, 1181c) authorizes the Secretary of the Interior, under such rules and regulations as may be necessary and proper, to conserve and manage such portions of the Revested Oregon and California and Reconveyed Coos Bay Wagon Road Grant Lands as are under his jurisdiction, for multiple purposes, including the provision of recreational facilities.

§ 115.181 Definitions.

Except as the context may otherwise indicate, for the terms used in §§ 115.180–115.184 and in contracts made thereunder:

(a) "Bureau" means the Bureau of Land Management, Department of the Interior.

(b) "O. and C. lands" means the Revested Oregon and California Railroad and Reconveyed Coos Bay Wagon Road Grant lands and other lands administered by the Bureau under the provisions of the act of August 28, 1937 (50 Stat. 874; 43 U.S.C. 1181a, 1181c).

(c) "Authorized Officer" means the Government official who has been duly authorized to (1) designate O. and C. lands as public recreational sites, (2) to administer the construction, operation and maintenance of public recreation facilities and (3) to administer the use of such sites and facilities through leasing or otherwise.

(d) "Public Recreational Sites" means O. and C. lands possessing special values for some form of intensive public outdoor recreational activity, including but not limited to picnicking, camping, swimming, boating or skiing.

(e) "Public Recreational Facilities" means improvements or structures of any type constructed, operated and maintained in public recreational sites for the enhancement of the public enjoyment of the recreational resources of such sites.

§ 115.182 Competing uses; memoranda of understanding.

(a) In public recreational sites the use and disposal of resources such as timber, minerals, and forage shall be administered in such a manner as to minimize damage to recreational or scenic resources and facilities. Such competing uses shall also be regulated so as to protect routes of access to public recreational sites and to minimize damage to scenic values along such access routes.

(b) Where adequate recreational facilities in a public recreational site are not provided for through lease or permits to state or local government agencies or their instrumentalities under authority of other laws or regulations referred to in § 115.184, such facilities may be constructed, operated and maintained by the authorized officer alone, or under a memorandum of agreement jointly with Federal, state or local government agencies or their instrumentalities.

§ 115.183 Use of public recreational sites and facilities operated by the Bureau.

(a) Public recreational sites and facilities operated by the Bureau shall be for transient use by the public and shall not be occupied by users for extended periods nor in a manner that, in the judgment of the authorized officer, is contrary to the public interest.

(b) The authorized officer may, in his discretion, post reasonable requirements for the use of public recreational sites and facilities operated by the Bureau, including but not limited to provisions to protect the area from fire, protect recreational values, and to protect the public health and safety.

(c) The authorized officer may establish and collect a reasonable service charge for the use of public recreational sites and facilities operated by the Bureau.

(d) No restrictions on the use of public recreational sites and facilities shall be made because of reasons of race, creed, color or country of origin.

(e) The penalty for wilful violation of any of the provisions of this section or of any reasonable rules or regulations promulgated thereunder may be denial of the use of the public recreational sites and facilities and if the circumstances so indicate, the initiation of an action for trespass on the property of the United States.

§ 115.184 Leases, permits, and licenses.

Leases, permits and licenses for the recreational use of the O. and C. lands, including lands containing recreational facilities may be granted, upon application, under the provisions of Parts 9, 254, 257, and 258 of this chapter and shall contain provisions determined necessary by the authorized officer, including but not limited to, provisions to protect the area from fire, protect recreational values, and to protect the public health and safety. Leases, permits and licenses which involve the operation of commercial concessions shall contain stipulations requiring conformance with reasonable public service rules including schedules of charges approved by the authorized officer.

[F.R. Doc. 59-8150; Filed, Sept. 29, 1959; 8:47 a.m.]

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 1987]

[81371]

WASHINGTON

Power Site Restoration No. 556; Partly Revoking Executive Orders of July 2, 1910 and March 31, 1911 (Power Site Reserves No. 129 and 179) and Power Site Classifications No. 349 and 407; Conditionally Restoring Lands in Power Site Reserves No. 129, 179, 197; Power Site Classifications No. 212, 349, and 407; and Power Projects 587, 791, 998, 2062, 2148, and 2149; Partly Revoking Public Land Order No. 1356 of November 5, 1956 (Chief Joseph Dam Project)

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in the act of March 3, 1879 (20 Stat. 394; 43 U.S.C. 31), and as Secretary of the Interior, and pursuant to determinations DA-153 and DA-157-Washington of the Federal Power Commission issued January 16, 1959, and September 2, 1958 respectively, it is ordered as follows:

The Executive orders of July 2, 1910 and March 31, 1911, creating Power Site Reserves No. 129 and 179 respectively; the departmental order of June 22, 1944 designated Power Site Classification No. 349, and the order of the Geological Survey of March 29, 1950 designated Power Site Classification No. 407, are hereby revoked so far as they affect the following-described lands, or any of them:

WILLAMETTE MERIDIAN

T. 35 N., R. 25 E.,
Sec. 18, S½SE¼;
Sec. 19, NE¼NE¼;
Sec. 20, SW¼NW¼;
Sec. 29, NW¼NW¼.
T. 40 N., R. 25 E.,
Sec. 26, NE¼NE¼.
T. 40 N., R. 26 E.,
Sec. 9, SW¼NW¼.
T. 30 N., R. 27 E.,
Sec. 28, SE¼NW¼, NW¼SE¼, SE¼SE¼;
Sec. 34, SW¼NW¼, SW¼SE¼, NE¼SW¼.
T. 30 N., R. 28 E.,
Sec 14, SW¼NW¼.
T. 30 N., R. 29 E.,
Sec. 7, SE¼SE¼.

The areas described aggregate approximately 520 acres.

2. The Federal Power Commission has determined that the value of the following-described lands reserved for power purposes would not be injured or destroyed for such purposes by location, entry, or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818) as amended, any location, entry, or selection of the lands marked by an asterisk however, to be subject to the further condition that the United States, its permittees or licensees, in the construction, operation and maintenance upon the lands of power project works, shall not be held liable for any damages to improvements placed on the lands, and any location, entry, or selection of the lands in T. 29 N., R. 26 E., to be subject to the further condition that the United States, its permittees or licensees shall not be held liable for any damage caused by the operation or maintenance of the Chief Joseph Dam Project of the Department of the Army, and to a reservation to the United States, its permittees or licensees of the right to use for flowage purposes all those portions of the lands in said township lying below an elevation of 953 feet:

WILLAMETTE MERIDIAN, WASHINGTON

T. 30 N., R. 22 E.,
Sec. 13, lots 5, 7;
Sec. 24, lots 1, 7.
T. 31 N., R. 22 E.,
Sec. 6, lot 2;
Sec. 7, SW¼NE¼;
Sec. 8, SW¼SW¼;
Sec. 21, SE¼NW¼, NE¼SW¼, SW¼SE¼;
Sec. 26, NE¼SW¼;
Sec. 35, E½NE¼.
T. 32 N., R. 22 E.,
Sec. 29, lot 10, SE¼SE¼;
Sec. 32, lot 6, E½SE¼.
T. 30 N., R. 23 E.,
Sec. 7, lot 1;
Sec. 19, lot 1, SE¼NW¼, NE¼SW¼;
Sec. 21, SE¼SE¼;
Sec. 22, SW¼SW¼;
Sec. 28, lot 1;
Sec. 30, SE¼NE¼, SE¼NW¼.
T. 31 N., R. 23 E.,
Sec. 31, lots 2, 3, 4, SW¼NE¼, SE¼NW¼, NW¼SE¼.
*T. 29 N., R. 24 E.,
Sec. 31, lots 3, 4, 7.
*T. 30 N., R. 25 E.,
Sec. 18, lots 1, 2.
*T. 38 N., R. 25 E.,
Sec. 1, lot 9;
Sec. 2, lot 7.
*T. 39 N., R. 25 E.,
Sec. 1, lot 1;
Sec. 13, lot 8, W½NE¼SW¼;
Sec. 24, lot, 3, 4;
Sec. 25, NW¼NE¼, N½SW¼, SE¼SW¼.
*T. 40 N., R. 25 E.,
Sec. 4, lots 2, 6;
Sec. 9, SW¼NE¼, NW¼SE¼;
Sec. 12, W½SW¼;
Sec. 13, NE¼NE¼, SW¼NE¼, SE¼SW¼;
Sec. 23, lots 1, 3, 8, 9, 12, 20, 22, 23, 24, 13, 25, E½SW¼, SE¼SE¼;
Sec. 24, lot 2;
Sec. 26, lots 1, 5, 8, 9, 10, SE¼SE¼;
Sec. 28, lot 5.
T. 29 N., R. 26 E.,
Sec. 3, lots 3, 4, 5, NE¼SW¼.
*T. 39 N., R. 26 E.,
Sec. 18, lot 2.
T. 40 N., R. 26 E.,
Sec. 4, lot 12, S½SE¼;
*Sec. 5, lot 8;
*Sec. 7, lots 6, 7;
*Sec. 8, lot 1;
*Sec. 9, lots 1, 2, 3, 4, 5, SE¼NW¼;
*Sec. 10, lots 1, 2, 3, 6, 10, 11, 12, NE¼NW¼;
*Sec. 11, lots 1, 2, 3, 10, NE¼NE¼, SE¼SE¼;
*Sec. 12, lots 1, 2, 3, 4, 5, 6, 7, W½E½, NE¼NW¼;
*Sec. 13, lots 1, 2, 3, 4, 5, 6, 7;
Sec. 13, lot 8;
Sec. 24, NE¼NE¼.
*T. 30 N., R. 27 E.,
Sec. 19, lot 7;
Sec. 20, lot 5;
Sec. 27, lot 4;
Sec. 28, lots 2, 3, 4, 5, 6;
Sec. 34, lots 3, 4, 5, 6;
Sec. 35, lot 5.
T. 40 N., R. 27 E.,
Sec. 18, lots 1, 5, 6;
Sec. 19, lots 1, 2, 3, 4, 7, 8, 9, 11, 12, SW¼NW¼, NE¼SW¼.
*T. 30 N., R. 28 E.,
Sec. 13, lot 2;
Sec. 14, lots 1, 2, 3;
Sec. 20, lots 1, 2, 3, 4;
Sec. 29, lots 1, 2, 3, 4;
Sec. 31, lots 7, 8, 9;
Sec. 32, lots 1, 2, 3.
*T. 30 N., R. 29 E.,
Sec. 7, lots 7, 9.

The areas described aggregate approximately 5,300 acres.

3. The lands are rough and mountainous with shallow rocky soil, and in the main are not considered suitable for cultivation.

4. Subject to any valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, the lands are hereby opened to location, entry, or selection under the public land laws in accordance with the following; those lands described in paragraph 2 of this order being so opened subject to the conditions and reservations stipulated in paragraph 2:

a. Until 10:00 a.m. on March 21, 1960, the State of Washington shall have a preferred right of application to select the lands in accordance with and subject to the provisions of subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 852C), and the regulations in 43 CFR, and the stipulations in this order. During this period the State may also apply for the reservation to it or to any of its political subdivisions of any of the lands required for rights-of-way or materials sites in accordance with the provisions of section 24 of the Federal Power Act of June 10, 1920 (62 Stat. 275; 16 U.S.C. 818), as amended.

b. Applications under the homestead, desert land and small tract laws by veterans of World War II and the Korean Conflict, and by others claiming preference under the act of September 27, 1944 (58 Stat. 747; 43 U.S.C. 279–284) as amended, filed at or before 10:00 a.m. on October 27, 1959, shall be considered as simultaneously filed at that time. Rights under such preference right applications after that hour and before 10:00 a.m. on December 22, 1959, will be governed by the time of filing.

c. All valid applications under the nonmineral public land laws other than those coming under subparagraphs (a) and (b) above, presented prior to 10:00 a.m. on December 22, 1959, will be considered as simultaneously filed at that hour. Any rights under such applications filed thereafter will be governed by the time of filing.

d. All applications under subparagraphs (a), (b) and (c) above, shall be subject to those from persons having prior existing valid settlement rights, preference rights conferred by existing law, and equitable claims subject to allowance and confirmation.

Persons claiming preferential consideration must submit evidence of their entitlement.

5. Public Land Order No. 1356 of November 5, 1956, reserving lands for use of the Department of the Army in connection with the Chief Joseph Dam Project, is hereby revoked so far as it affects the following described lands:

T. 29 N., R. 26 E.,
Sec. 3, lots 3, 4, and 5.

The lands are described in paragraph 2, supra.

6. The lands, except those described in paragraph 5, have been open to applications and offers under the mineral-leasing laws and, excepting those coming within the second proviso to section 2(a) of the act of August 11, 1955 (69 Stat. 681; 30 U.S.C. 621), to location under the mining laws pursuant to the provisions of that act. The lands described in paragraph 5 shall be open to such applications and offers, and to mining locations, subject to the conditions prescribed by this order, at 10:00 a.m. on March 21, 1960.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

ROGER ERNST,
Assistant Secretary of the Interior.

SEPTEMBER 21, 1959.

[F.R. Doc. 59-8151; Filed, Sept. 29, 1959; 8:47 a.m.]

[Public Land Order 1994]

[80083]

UTAH

Opening Lands Under Section 24 of the Federal Power Act (Power Site Classification No. 219)

By virtue of the authority vested in the Secretary of the Interior by section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818) as amended, and pursuant to determination DA–126–Utah of the Federal Power Commission, issued August 5, 1958, it is ordered as follows:

1. The following-described lands, withdrawn in Power Site Classification No. 219 of May 13, 1929, shall, at 10:00 a.m. on October 30, 1959, be open to application, petition, location and selection under applicable public land laws, subject to valid existing rights, the requirements of applicable laws, the 91-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U.S.C. 279–284) as amended, to the provisions of section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818) as